



File No.: EXP202102521

## RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

### FACTS

FIRST: On September 15, 2021, a complaint was filed with the Spanish Agency for Data Protection against ARAMARK SERVICIOS DE CÁTERING, S.L.U., with NIF B60359726 (hereinafter, the complained party).

The reasons for the complaint are as follows:

ARAMARK SERVICIOS DE CATERING, S.L.U., which provides catering services at CEIP \*\*\*CEIP.1 in Seville, has informed the parents of the students of the "General Conditions of the Dining Service," in which it is stated that to notify absences in the use of the dining service, one must register as a user on the website \*\*\*URL.1, as well as provide health data of minors in the event of claiming a situation of illness, and even to communicate intolerances.

The complainant points out that the complained entity is the awardee of the dining service contract offered by the JUNTA DE ANDALUCÍA, with this Administration being responsible for the processing of data of students who use the dining service and the complained entity being in charge of the processing. However, on the website \*\*\*URL.1, the complained entity presents itself as the data controller, obtaining the data from user registration. It states that we are facing a data registration that requests additional data beyond what is provided for in the contracting specifications, thus affecting the principle of data minimization, and that it extends beyond the direct connection with the dining service, given that the processing lasts until the user deregisters.

It indicates that excessive data of minors is requested, registration not foreseen in the public contract is required, and, based on this, the aforementioned website anticipates the possibility of using data for purposes other than mere management of the absence system, but rather those inherent to the status of a user on that website.

The complainant states that the company ARAMARK is carrying out processing of categories of data that exceed what is provided for in the specifications governing the contracting and is allocating that data to purposes different from those contemplated therein, such that it is acting as Data Controller and not as Data Processor concerning the Andalusian Education Agency.

It also states that it understands that the complained entity does not provide adequate information regarding the collection and purposes of the use of user data and that it does not apply the necessary security measures in the management of the same, given that the request for health data for justifying absences involves the processing of special categories of data of minors, without it being informed on the website about the adoption of adequate security measures for the protection of such data, finally noting that, despite managing health data of minors, the designation of a DPO by that entity is not foreseen.

Relevant documentation provided by the complainant:

- Complaint letter detailing the facts and the legal grounds on which it is based.

(Doc. Complaint\_against\_ARAMARK\_before\_AEPD\_signed)

- Accreditation of the status of interested party

- General Conditions of use of the Dining Service provided by the complained company from September 2021

(Doc. Circular\_to\_Parents\_School\_Year\_2021\_2022)

- Privacy policy of the website \*\*\*URL.1 as of 09/22/21

(Doc. 000007128e2100038386-WEB\_PRIVACY)

- Resolution of Correction of Errors. Contracting of the concession of the Public School Dining Service in public educational centers dependent on the Ministry of Education and Sports through a restricted procedure. File No. 0065/ISE/2019/SC.

(Doc. SPECIFICATIONS\_ADMINISTRATIVE\_CLAUSES\_DILIGENCE\_DOCUMENT\_607583)

(hereinafter PCAP)

- Technical specifications of the Andalusian Public Education Agency for the contracting of the concession of the public school dining service in public educational centers dependent on the Ministry of Education and Sports, subject to harmonized regulation through a restricted procedure. File No. 0065/ISE/2019/SC.

(Doc. SPECIFICATIONS\_TECHNICAL\_PRESCRIPTIONS\_601443) (hereinafter PPT)

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party, so that it could proceed to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on October 1, 2022, as stated in the certificate in the file.

On October 29, 2021, a response letter was received at this Agency indicating, in summary, the following:

It is radically false that the "taste of growing" website requests health data of minors (such as an illness) or data on intolerances.

They explain the communication process, detailing the information that parents or guardians must provide on the website.

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Regarding the legal information provided by Aramark on the website, it is noted that, in some of these purposes, Aramark acts as the Data Controller, and this is reflected in the privacy policy and the general terms of use. Since responsibility does not derive from the nature of the data controller but from its specific activities in a given context, Aramark acts, for certain specific purposes, as the Data Controller of the website. In any case, this position of Data Controller should not be confused with the position of Data Processor that Aramark holds in relation to communications for the purpose of cafeteria assistance.

In relation to the data concerning the cafeteria service, since it is obtained through the Data Controller (Junta Andalucía), Aramark does not have the authority to manage the enrollments and cancellations of the service; rather, it will be the Data Controller who carries out such management.

Regarding data of minors, Aramark reiterates that it has processed Personal Data in accordance with the instructions mentioned in the Specifications and other contractual documents applicable to the execution of the contract.

They consider that the website provided by Aramark is simply a tool through which data is collected on behalf of and for the CEIP Joaquín Turina of Seville as per the TECHNICAL SPECIFICATIONS OF THE ANDALUSIAN PUBLIC AGENCY.

In this sense, Aramark acts as the Data Processor for certain purposes, including the management of the absences of the interested parties concerning the CEIP Joaquín Turina of Seville.

Therefore, in its capacity as Data Processor, Aramark processes the personal data of the interested parties, such as: Name and Surname, ID number, address, and bank account number of the students benefiting from the service and their legal guardians.

THIRD: On December 15, 2021, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

A request for information was made to the respondent party, and a response was received by this Agency, dated February 22, 2022, informing of the following:

The respondent party was awarded the contract for the Public School Cafeteria Service and Child Nutrition Reinforcement Program (PRAI) in the public educational centers dependent on the Ministry of Education and Sports.

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That, in accordance with the Specific Administrative Clauses of the Andalusian Public Agency for Education, Aramark acts as the Data Processor in relation to the data processed in the execution of the service.

As associated objects, the PCAP and PPT specifications of the file cited by the respondent party, file no. 0164/ISE/2020/SC, have been incorporated into this file.

FIFTH: On August 21, 2022, the director of the AEPD issued a resolution to archive the proceedings, as no evidence was found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

On September 27, 2022, the claimant filed a motion for reconsideration, based on the following:

“That, in their opinion, the Resolution issued did not take into account entirely relevant facts that were highlighted by this party in the complaint and, at the same time, reaches conclusions that do not align with the material reality present in this case, thereby concluding the non-existence of irregularities in the actions of the reported company. (...)

The appeal was upheld as the request for proof of medical attendance to justify the absences from the cafeteria was not justified.

SIXTH: On November 11, 2022, the Spanish Agency for Data Protection agreed to carry out new investigative actions regarding the facts considered upon upholding the motion for reconsideration against the resolution of archiving.

Aramark acts in a dual role as both Data Controller and Data Processor.

As a consequence of the execution of the cafeteria service contract and considering the role of the contractor as Data Processor, Aramark sent various communications to the contracting authority, responsible for the contract, Provincial Management of Seville, Andalusian Public Agency for Education of the Junta de Andalucía.

## LEGAL GROUNDS

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### Competence

In accordance with the functions that Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) assigns to each control authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), it is competent to

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to resolve these investigative proceedings, the Director of the Spanish Agency for Data Protection. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Article 48 of Law 1/2014, of June 24, on Public Transparency of Andalusia provides as follows:

“The Directorate of the Council shall exercise the following functions:

- a) Represent the Council.
  - b) The resolution of claims against express or presumed resolutions regarding access that may be presented by the requesting individuals or by third parties interested in the cases provided for in the basic legislation.
  - c) Adopt uniform interpretation criteria for the obligations contained in this law.
  - d) Present an annual report of activities to the Parliament of Andalusia.
  - e) Resolve the inquiries regarding transparency or data protection posed by the administrations and entities subject to this law.
  - f) Respond to inquiries that, on an optional basis, are posed by the bodies responsible for processing and resolving requests for access to information, as well as the inquiries posed by the competent bodies for compliance with the provisions of Article 22.
  - g) Exercise control of active publicity in the terms provided in Article 23.
  - h) Initiate the opening of disciplinary or sanctioning files in accordance with the provisions of Title VI.
  - i) Perform the functions provided in the legislation on data protection for its exercise by the autonomous agencies, where applicable.
2. The Directorate of the Council shall be advised by the Advisory Commission provided for in Article 49.”

Article 57.1.b) of the LOPDGDD establishes the following:

1. The autonomous authorities for personal data protection may exercise the functions and powers established in Articles 57 and 58 of Regulation (EU) 2016/679, in accordance with the autonomous regulations, when they refer to:

(...)

b) Processing carried out by natural or legal persons for the exercise of public functions in matters that fall within the competence of the corresponding Autonomous or Local Administration.

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From the documentation provided and obtained, it follows that ARAMARK acted as the data processor in relation to the facts subject to proceedings. Therefore, the knowledge of the matter presented does not correspond to the Spanish Agency for Data Protection. In this regard, Article 82 of the Statute of Autonomy of Andalusia, in its reform approved by Organic Law 2/2007, of March 19, assigns to that Autonomous Community the competence in the matter raised, as well as the rest of the mentioned regulations, corresponding to the Council of Transparency and Data Protection of Andalusia to ensure the guarantee of this right, by virtue of the Andalusian Law 1/2014, of June 24.

Therefore, based on the indications in the previous paragraphs, the documentation is transferred for the appropriate effects, as this Spanish Agency for Data Protection is not competent.

In accordance with the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED WITH THE TRANSFER of these proceedings to the Council of Transparency and Data Protection of Andalusia.

SECOND: TO NOTIFY this resolution to ARAMARK SERVICIOS DE CÁTERING, S.L.U., and to the claiming party.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative

Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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